RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

# Rosh Hashanah Weighs Who You Are, Not What You Did

Hilchot Teshuvah Perek 3

**Sefer:** Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

**Chapter:** 3, Halachot 1–4

**Shiur:** Given by Dayan Daniel Kada on Zoom, Tuesday 1 October 2024 (Erev Rosh Hashanah 5785)

*These notes are based on an automatic (Whisper) transcript of the recording.*

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## Introduction

"Of course, our minds are occupied with what's happening in our land." The Rabbi opened with **תמיד עיני ה' אלהיך בה, מרשית השנה ועד אחרית שנה**: "the eyes of Hashem your God are always upon it, from the beginning of the year to the end of the year." The Gemara applies this verse to Rosh Hashanah, and on Erev Rosh Hashanah we pray it will be fulfilled for the Land of Israel.

**Recap:** Chapters 1–2: teshuvah is not itself a mitzvah; when one returns, viduy is the mitzvah. The definition of teshuvah and of *teshuvah gemurah*; the precise form of viduy; tzedakah as the "horizontal" balance to a "vertical" teshuvah.

Chapter 3 has **15 halachot**. "This is a very difficult chapter, well, the first part of it." The plan: read the first three halachot together, raise all the questions, and put them together into **one approach**, "and really prepare ourselves for tomorrow night when Rosh Hashanah commences."

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## Part 1: The Text (Halachot 1–3)

### Halacha 1: Weighing merits and sins

**כל אחד ואחד מבני האדם יש לו זכויות ועוונות. מי שזכויותיו יתרות על עוונותיו, צדיק; ומי שעוונותיו יתרות על זכויותיו, רשע; מחצה למחצה, בינוני. וכן המדינה... וכן כל העולם כולו**

Every person has merits and sins. If merits exceed sins, he is a **tzaddik**; if sins exceed merits, a **rasha**; half and half, a **beinoni**. So too a country… and so too the whole world.

**First question:** how many people are *exactly* 50–50?

### Halacha 2: The consequences, and a scale of magnitude

**אדם שעוונותיו מרובין על זכויותיו, מיד הוא מת ברשעו... וכן מדינה שעוונותיה מרובין, מיד היא אובדת: זעקת סדום ועמורה כי רבה... וכן כל העולם כולו... מיד הן נשחתין: וירא ה' כי רבה רעת האדם**

A person whose sins outweigh his merits **dies immediately** in his wickedness… a country whose sins outweigh its merits is **immediately destroyed** (Sedom)… the whole world, **immediately destroyed** (the Flood).

**ושיקול זה אינו לפי מניין הזכויות והעוונות אלא לפי גודלם. יש זכות שהיא כנגד כמה עוונות... ויש עוון שהוא כנגד כמה זכויות... ואין שוקלין אלא בדעתו של אל דעות**

The weighing is not by **number** but by **magnitude**. One merit can outweigh many sins… one sin can outweigh many merits… and only the God of knowledge can weigh them.

- **Aviyah son of Yeravam**: Yeravam was a terrible king who made the people sin and blocked the roads to the Temple; his family took part. But when appointed over a section of road, Aviyah **let the pilgrims through**, and was spared: **יען נמצא בו דבר טוב**.

  **וחוטא אחד יאבד טובה הרבה**: one sin can destroy much good.
- **Philippe:** who could remember everything you did all year? "Only Hashem." No human, "not even the greatest computer," could weigh the act together with a person's upbringing, context and motive.

### "This should shake you"

"I'm perplexed nobody's bothered!" The Rambam says whoever has more sins than merits **dies immediately**; cities full of debauchery are **destroyed**. **That doesn't seem to be reality.**

**Olivia:** "And there are so many people who are good and die early." "Precisely."

### Halacha 3: Regretting mitzvot, and the annual judgement

**כל מי שנתחרט על המצוות שעשה ותהה על הזכויות, ואמר בליבו: ומה הועלתי בעשייתן? הלוואי לא עשיתי אותן! הרי זה איבד את כולן ולא הזכירו לו זכות בעולם**

Whoever regrets the mitzvot he did and says "what did I gain? I wish I hadn't done them!" **has lost them all**.

**וכשם ששוקלין זכויות אדם ועוונותיו בשעת מיתתו, כך בכל שנה ושנה שוקלין... ביום טוב של ראש השנה. מי שנמצא צדיק נחתם לחיים, ומי שנמצא רשע נחתם למיתה, והבינוני תולין אותו עד יום הכפורים: אם עשה תשובה נחתם לחיים, ואם לאו נחתם למיתה**

Just as merits and sins are weighed at death, so **every Rosh Hashanah**. The tzaddik is sealed for life, the rasha for death, and the beinoni is held until **Yom Kippur**.

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## Part 2: The Questions

"So much ink has been spilt on these three halachot."

1. **Structure.** Halacha 1 is the weighing, 2 the consequences, the end of 3 the annual judgement. What is the **regret** clause doing in the middle?
2. **Reality.** The **Ra'avad**: the Rambam takes the Gemara's "sealed for death" as *immediate* death. That isn't so; we see wicked people who don't die. The Ra'avad reads it as dying **earlier** than one's allotted years, not this year. (The Rabbi: the Rambam "obviously foresaw the question," as with free will and foreknowledge, where the Ra'avad said he never answered and "he did, in a much deeper way." And Olivia's question remains even on the Ra'avad's reading.)
3. **Regretting a mitzvah.** Suppose someone hears **shofar** at 11am on Rosh Hashanah, comes home at 1pm to find he missed an important delivery, and says, "I should never have gone, what a waste." If he has *lost* the mitzvah, then the day-long obligation should return and he should have to **hear shofar again**. Same with **Shema** at night. **No one has ever ruled that.**
4. **Then what's special about teshuvah?** The **Ramchal** (*Mesillat Yesharim*) calls teshuvah **חסד גמור**, a pure kindness. But if regret cancels *both* sins and mitzvot, it's just a symmetrical rule about regret: nothing special.

5. **Weighing at all? אשר לא ישא פנים ולא יקח שוחד** (Ekev): Hashem takes no bribe. The Midrash, cited by Rashi: **not even a bribe of mitzvot.** Every sin must be accounted for individually, however many mitzvot you have; and every mitzvah rewarded however many sins. "Who cares how much it weighs? It just makes no sense."

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## Part 3: The Answer: Identity, Not Actions

"All of this ties back to the fundamental concept we've touched on over the last few weeks… **Teshuvah, Rosh Hashanah, is about a person's identity.**"

### What regret takes away

When you regret a mitzvah, **the act stays done**. You fulfilled the obligation and will be rewarded; no need to hear shofar again. What you lose is **the value** of that mitzvah in your character:

When you do a mitzvah and rejoice in it, aside from the act, **your value system improves**: your identity becomes more positive. Regret it, and that part of your identity is neutralised.

### Why teshuvah *is* a pure kindness

| | Regretting a mitzvah | Regretting a sin (teshuvah) |
|---|---|---|
| Value in your identity | Lost | Lost (you no longer value the sin) |
| The **act itself** | **Stays**, and is rewarded | **Erased**: *kaparah*, wiped clean |

That's the *chesed gamur*: an action you did can somehow be undone.

### What's on the scale

**Individual actions are never balanced out.** "Even if you have a billion mitzvot and one aveirah, that aveirah has to have its consequences. There's no bribe of mitzvot." That is Yom Kippur's business: rectifying individual actions.

**Rosh Hashanah weighs something else: who you are.**

"Rosh Hashanah is not about what we do. It's about **who we are**: the weight we give to these things."

Usually identity is defined by what you do: "what you eat is who you are; what you do is who you are." But **memory and value** shape identity too. You may have done many mitzvot this year and look back thinking "it wasn't worth getting up early for Selichot all Elul, it wiped me out." The mitzvot stand; but they don't count on the **scale of identity**.

**Mary:** how do we know Hashem is calculating everything? "Is He writing down every single thing all year? It's a very long year." "Especially a leap year, that's true!" The Torah and the Sages tell us, and **"My ways are not your ways"**: as a child the Rabbi wondered how Hashem could know what was happening in Australia and England at once. A human question about a different order of being.

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## Part 4: "Sealed for Life": Living Olam HaBa Now

The Rishonim struggled with "the wicked don't die."

- **The Kesef Mishneh** (Rabbi Yosef Karo): you can't judge; the person you think is wicked isn't. "Very difficult to accept," since some people are wicked by any standard.

- **Tosafot**: "sealed for life" refers to **the life of the World to Come**, and the **Lechem Mishneh** reads the Rambam the same way. But then **why judge it every year?** Your Olam HaBa changes year to year; just assess it at death.

**The approach the Rabbi follows, from Rav Moshe Shapira:**

> here means **the life of the World to Come *in this world***: living with Hashem's closeness **חיי העולם הבא** .this coming year

## The light of Hashem's countenance

- **The Ramchal (Derech Hashem):** all our states in life depend on whether Hashem **shines His countenance** on us or hides it. The more it shines, the more a person truly enjoys life; to come close and bask in that light is the whole purpose. The Rabbi's image: the **pillar of light** at the start of *Mr Bean*. The light is always there; will you step into it?
- **The Nefesh HaChaim (Rabbi Chaim of Volozhin):** each mitzvah **envelops** a person in a kind of Divine ambience, which is why **one mitzvah leads to another**.
- **Shabbat is 1/60 of Olam HaBa** because it is when we reconnect with Hashem.

**Analogy:** spend time with the person you most admire, "perhaps when the Queen was alive," lunch, dinner, breakfast. As humans we'd eventually want to move on; but imagine that **first feeling** staying, even increasing. **How much of that will you have this year?** That is what's decided.

## The three categories, re-read

| | On the scale of identity | "Sealed for…" |
|---|---|---|
| **Tzaddik** | What you **value most** about your year is the good: "I may have done terrible things, but that shiur, that tefillah, the person I helped, **that's** the highlight." One merit can outweigh many sins. You will still face consequences for individual sins | **Life**: you will feel Hashem's presence in your day-to-day life |
| **Rasha** | Even with many mitzvot, what you love looking back on is "that lunchtime hour gossiping with my colleagues" | **Death**: you'll live, and even do mitzvot, but without the illumination. "How many religious people do mitzvot with no life in them, and how many seemingly irreligious people do a few mitzvot with all their heart?" |
| **Beinoni** | Not a statistical 50–50 (maybe one person in 8 billion), but **a conflicted value system**: happy with the mitzvot, but enjoying the aveirot too. "The vast majority of us" | **Held until Yom Kippur**: sort out your values in the Ten Days |

"That's just, you read that, you laugh out loud. It's not true." The Rambam would never write that the wicked literally drop dead. **"You die" means you're not living with Hashem.** "In your value system, you're dead."

There are **two judgements**: we also say **מי יעשיר ומי יעני**, who will be rich and who poor. The physical judgement is real. But "life" in these halachot is the spiritual one.

### "A sweet year"

Why **sweet**? The Gemara says if Gan Eden is in Eretz Yisrael, its entrance is **Beit She'an**, and Rashi notes its fruit is the sweetest in the land. "Sweet" is the language of Gan Eden: a year in which you'll **experience the light**. "If you've had those feelings… you won't trade any pleasure in this world for them." Kabbalah speaks of days of darkness and days of light; some years we have more.

### "Life" vs "good life": the Ramchal on the Amidah

The **Ramchal**, in an essay on Rosh Hashanah and Yom Kippur, notes that in the Ten Days' Amidah:

- The **first two** blessings add **זכרנו לחיים** and **מי כמוך… זוכר יצוריו לחיים**: just **"life."**

- The **last two** add **וכתוב לחיים טובים** and **בספר חיים ברכה ושלום ופרנסה טובה**: "**good** life," a life of **blessing** and **livelihood**.

**Why?** And the famous question: how could the Geonim add requests to the first three blessings, which are meant to be praise only?

**Answer: life is life.** "You don't say goodness is good." In the first blessings (Avot), whose purpose is to make us ask *when will my deeds reach those of Avraham, Yitzchak and Yaakov?*, **"life" means real life**: closeness to Hashem, needing no adjective. At the end, we pray for our **physical** life, which does need qualifying: *good* life, blessed, with livelihood.

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## Part 5: Questions

**Adam:** we're also meant to *enjoy* this world, even its physical pleasures, which are neither mitzvah nor aveirah. How does that fit the identity picture? Nothing is wrong with enjoying the world **as part of a holistic life** (the **Shemonah Perakim**). But when "your life's mission is to go to this next steak, this new kosher restaurant with steak on the grill" (some of the new restaurant ads, which "certain sects within Judaism are quite excited about"), "**that's your value system**", and the Ramban calls such a person despicable within the Torah's permission. Adam suggested that nothing is truly neutral; how you engage with anything leads toward a tzaddik's or a rasha's mindset. The Rabbi: some book says no action is neutral ("a very extreme view, but there's some truth to it"), and the Rambam says something like it in the **Shemonah Perakim, Chapter 3**. Engaging with the world healthily as part of a wider system is not a "mitzvah," but it's right; or one can simply eat breakfast without thought.

**Someone was told:** after Yom Kippur you may repeat a sin, just reduce it by 10% each year. **"That's incorrect."** You can't enter the year planning *the same sins, 10% less*. "A sin is a sin, full stop." If at year's end you find you've improved by 10%, that is an achievement to applaud.

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## Part 6: The Shofar's Hint (Halacha 4)

**אף על פי שתקיעת שופר בראש השנה גזירת הכתוב, רמז יש בו, כלומר: עורו ישנים משנתכם, ונרדמים הקיצו מתרדמתכם, וחפשו במעשיכם וחזרו בתשובה… אלו השוכחים את האמת בהבלי הזמן, ושוגים כל שנתם בהבל וריק… הביטו לנפשותיכם והטיבו דרכיכם ומעלליכם**

Though shofar is a decree of Scripture, it hints: **"Wake up, sleepers, from your sleep; slumberers, rouse yourselves!"** Examine your deeds and return… you who forget the truth in the vanities of the time and waste your whole year… look to your souls.

**לפיכך צריך כל אדם שיראה עצמו כל השנה כולה כאילו חציו זכאי וחציו חייב, וכן כל העולם חציו זכאי וחציו חייב… עשה מצוה אחת, הרי הכריע את עצמו ואת כל העולם כולו לכף זכות**

Therefore every person should see himself all year as **half meritorious and half guilty**, and the whole world likewise. One mitzvah tips himself and the whole world to merit.

In the identity reading: **see your value system as poised at half and half.** One or two actions can change who you are, and the world.

That is why we increase mitzvot and **Selichot** in the Ten Days. The Rabbi noted the Rambam did Selichot only between Rosh Hashanah and Yom Kippur, not the whole of Elul as Sephardim do, nor from the week before Rosh Hashanah as Ashkenazim do.

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## Summary

1. Merits and sins are weighed by **magnitude**, not number, and only Hashem can do it.
2. The problems: wicked people don't drop dead; regretting a mitzvah can't mean redoing it; teshuvah would be nothing special; and Hashem takes no "bribe of mitzvot."
3. **The answer: Rosh Hashanah weighs identity**, the value you place on what you did, not the acts themselves. Individual acts each have their own consequences.
4. **Regret** of a mitzvah removes its value from your identity, but the act stands. **Teshuvah** for a sin removes both: a pure kindness.
5. **"Sealed for life"** = living **Olam HaBa in this world** this year, in the light of Hashem's countenance (Rav Moshe Shapira, the Ramchal, the Nefesh HaChaim). **Beinoni** = a conflicted value system.
6. "Life" in the Amidah needs no adjective; "good life" is the physical.
7. **The shofar's call**: wake up, and see yourself and the world balanced on a knife-edge.

"Think, when Rosh Hashanah comes in less than 24 hours, about **who we are, our value system**. That's what the shofar awakens us to: those moments when we feel *this is the truth*, and *I keep on falling, but that's not who I am*."

*Shanah tovah*: "a sweet year, with Hashem's presence in our lives… may we see Israel saved from its enemies, and the revelation of Hashem's presence over all humanity."

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## Coming Up

**Next Tuesday, 8pm**, during the Ten Days: the rest of Chapter 3, in preparation for Yom Kippur.

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